

filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court **grants** Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff shall prepare and submit the Order.

6. 9:00 AM CASE NUMBER: L24-03699

CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON

***HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON APPEARANCE FILED BY PLN ON 1/21/26**

FILED BY: MERCURY CASUALTY COMPANY

***TENTATIVE RULING**

Only one motion was scheduled for 4/21/26, and it was addressed above.

7. 9:00 AM CASE NUMBER: L24-06494

CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. NADINE LOGAN

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT 664.6**